

A decaying democracy: The United Kingdom

Alexander Schmitz - Germany

In many recent criticisms of British politics, especially on the right wing, the issue of free speech has come up a lot. Although I disagree with most grievances named, there is a grain of truth: the British democratic system has shifted into an ever more executive heavy one at an alarming rate. Although the trend has existed in other countries like the United States, the United Kingdom is especially at risk due to its parliamentary supremacy system, which prevents any courts from striking down laws due to constitutionality.

A key point is the difference between a decaying democracy and a competitive authoritarian system. Hungary under Orban has slid into a system of competitive authoritarianism, where one party has tilted the environment to their favor. The United Kingdom is a case of democratic decay, where all major political actors have reduced accountability methods and expanded state authority while they were in power. It's dangerous because it hollows out democracy without creating the fervent resistance as seen in competitive authoritarian systems, and is easily abusable when in the wrong hands.

The expansion of the executive national security apparatus has coincided with the post 9/11 era, a time where civil liberties were being pushed aside for greater state power. Unlike the United States, where the written Constitution provides a strong backdrop of protections, the British parliament has passed laws which have greatly expanded the government's power to police speech. The Communications Act of 2003 for example, criminalized "grossly offensive", "obscene" or "menacing" speech. Who decides what is grossly offensive? Could a politician decide that criticism of his policy is "grossly offensive"? These sound like unrealistic cases, but the system gives the prosecution large discretion. The even more concerning part is the large scale arrests done under this statute with the low level of successful convictions. In 2023, over 12,183 arrests were made¹ in the country based on this law, but fewer than 10%² resulted in conviction. There is a wide ranging chilling effect on legitimate speech, because who would risk getting arrested for voicing views? The largest problem however isn't any abuse right now, it's if an authoritarian leader takes over and has enough support in Parliament.

This first step stifles individual dissent. But what if the government is committing illegal acts behind closed curtains? Under the Official Secrets Act of 1989, disclosure of any leaked intelligence information could face prosecution, regardless of **any** public interest³. This does not just affect the whistleblowers, but could be utilized to go after investigative journalists by putting scandals under the national security umbrella, therefore shielding the state from any inspection by the judiciary on harm or interest issues. The Defence and Security Media Advisory Committee (or DSMA) is an even greater threat within this national security apparatus. It issues notices to the press on restraining the

¹ House of Lords Library. "Select Communications Offences and Concerns over Free Speech." UK Parliament, 2025. <https://lordslibrary.parliament.uk/select-communications-offences-and-concerns-over-free-speech/>

² Freedom House. "United Kingdom: Freedom on the Net 2025 Country Report." Freedom House, 2025. <https://freedomhouse.org/country/united-kingdom/freedom-net/2025>

³ House of Commons Library. "The Official Secrets Acts and Official Secrecy." UK Parliament. <https://commonslibrary.parliament.uk/research-briefings/CBP-7422/>

publication of certain information. Although it is technically advisory, it's universally followed as it's used to warn the press from potential prosecution. The Defamation Act of 2013, although having introduced some guardrails (the serious harm test), still provides significant barriers for investigative journalism, by putting the burden of proof on those being sued in defamation lawsuits instead of those supposedly defamed. Today, the United Kingdom is known as the libel capital of the western world⁴, with oligarchs and major corporations using it to exert pressure on journalists, especially smaller ones. In *Irving v Penguin Books* (2000) for example, where British historian David Irving sued American historian Deborah Lipstadt, the former argued that he was being defamed as a "holocaust denier" because the Holocaust, in his view, never happened. The British system created the perversion where the Holocaust needed to be proven, an obvious and historically proven fact. Imagine if this system were to be utilized by corrupt government officials? This was a known Professor with strong backing.

What could one investigative journalist do?

Citizenship is another area of a risk. Under the British Nationality Act of 1981, the Secretary of State (Home Secretary) may revoke citizenship if "conducive to the public good". Under amendments after 9/11, the Secretary may even revoke citizenship in cases where it leads to statelessness if they are satisfied that the person **could** acquire citizenship somewhere else. Although this can be sued in court, imagine the chilling effect this has? Imagine that you fear your own nationality based on the fiat power of a Secretary that is extremely expansive (what does conducive to public good really mean?). Apart from the fact that the actual appeal process is highly compromised, in SIAC courts with closed evidence, where the defendant can't even access all the accusations being placed on them. This is a basic violation of "audi alteram partem", the right to know what you're being accused of and what evidence is put against you. How are you expected to win a fight where you're blind? An example of this was Mahdi Hashi, a Somali born British citizen, who had his citizenship revoked in 2012 while in Somalia. He claimed that this revocation was because he refused to join MI5 as an informant, which would be a blatant example of state retaliation. He was later charged with terrorism offenses in the United States.⁵ Regardless of all the heinous actions some individuals have taken, due process remains essential. Citizenship ought to be a right, not just a license to be maintained while on good behavior.

All these powers mean that the executive has large scale authority that could be misused if in the wrong hands. This is the core issue; a democracy where civil liberties and democratic systems are contingent on the good behavior of those in power. Arguably this is even worse than open authoritarian actions. It's mutual government overreach, where the state gradually chips away at civil liberties, but never too much where it seems outrageous. Some might argue that the lack of weaponization of these laws is proof that the system works. But how can we trust that norms will keep the ambitious and authoritarians in check, especially in an evermore polarizing environment? British democracy is built on the concept of parliamentary supremacy; a body that deliberates, not just delegates powers. The slow erosion of the supremacy of Parliament and creation of vague texts has permitted politicians to put an elephant in the crevice. A democracy that is dependent on the goodwill of the powerful is a democracy as fragile as a vase being thrown around.

⁴ Press Gazette. "UK Is SLAPP Tourism Capital of Europe." Press Gazette.
https://pressgazette.co.uk/media_law/uk-slapp-libel-tourism-capital-europe/

⁵ Bureau of Investigative Journalism. "What Do We Know About Citizenship Stripping?" December 10, 2014.
<https://www.thebureauinvestigates.com/stories/2014-12-10/what-do-we-know-about-citizenship-stripping>